Westbrook Zoning Board of Appeals

~ Zoning Board of Appeals Meeting ~

Date: Tuesday, February 10, 2026
Time: 7:00 PM
Location: Westbrook High School (Room 114), 125 Stroudwater St. (Hybrid via Zoom)
Video: https://vimeo.com/1163815420
Agenda: https://www.westbrookmaine.gov/AgendaCenter/ViewFile/Agenda/_02102026-984

Timestamps below are clickable [0:00]-style links — they jump straight to that moment in the video.

This summary highlights the meeting's key discussions and decisions, with direct quotes and timestamps for verification — it is not a substitute for watching the full meeting. *Summarization necessarily condenses and selects; for complete context, nuance, and anything not covered here, watch the full video at the link above. (Produced by: WestbrookCurrents.com)*

Unofficial summary. *This is produced by Westbrook Currents, an independent site — not the City of Westbrook — and may contain mistakes. For the official record, see the City's approved minutes and the meeting video.*

I. Roll Call & Officer Elections

Roll Call & Election of Officers [00:07]

Discussion Summary

Roll call: Nancy Heath, Keith Richard, Cliff McCarthy, Sherri Quint, Kevin Moss, and Chair Aaron Burns all answered present — a full board. Aaron Burns was nominated and elected Chair unanimously; Keith Richard was then nominated and elected Vice Chair unanimously (both by voice vote, no roll call recorded). The board clarified that Kevin Moss had recently been promoted from alternate to a regular voting seat after another member left the board, making Cliff McCarthy the board's current alternate.

Key Decisions

✓ Aaron Burns elected Chair; Keith Richard elected Vice Chair — both unanimous.

Action Items

None.

New Business

Administrative Appeal — 640 Saco Street, Stroudwater General [12:16]

Tax Map 001, Lot 012, Manufacturing Zone. Appeal by Alex Zhang of a Nov. 5, 2025 Notice of Violation (NOV) issued by Code Enforcement Officer (CEO) Brian Stetson, regarding the categorization of operations at the property as a nonconforming medical marijuana dispensary (or, alternately, an unauthorized caregiver retail store) as defined in the City of Westbrook Land Use Ordinance, rather than the legally nonconforming medical marijuana caregiver cultivation facility the property is grandfathered to operate as.

Background

Stroudwater General has operated at 640 Saco Street under a legal nonconforming (“grandfathered”) use since at least 2016/2018 as a medical marijuana caregiver cultivation facility — an enclosed, locked facility for growing, processing, and storing medical marijuana, not open to the public. City emails spanning 2023–2025, including from the property's prior owner through current owner Alex Zhang, repeatedly confirmed the business may sell what it grows and manufactures on-site directly to patients as an accessory use. On Nov. 5, 2025, CEO Stetson issued a Notice of Violation alleging the business had grown into a de facto medical marijuana dispensary or unauthorized “caregiver retail store” — citing the business's website and Weed Maps listing (both describing appointment-free, call-ahead access and posted hours), exterior signage, and information relayed by the Maine Office of Cannabis Policy (OCP), the state's medical marijuana regulator. Zhang, through attorney Jill Cohen, appealed on the 30th and final day of the correction window, saying repeated requests for a compliance re-inspection had gone unanswered.

The appellant's case (Alex Zhang / Attorney Jill Cohen)

Cohen argued the NOV was issued in error: a caregiver is always authorized under Maine law to sell what they grow to patients, with no municipal authorization required; CEO Stetson never personally inspected the site and relied solely on secondhand information from OCP and outdated photographs; Stetson failed to respond to repeated requests for a compliance re-inspection; and extensive remedial steps had been taken since August 2025 (a door buzzer, a formal appointment system, a scrubbed online presence, selling through non-compliant third-party product lines) that current photos, taken the week of the hearing, show in place.

> *“For him to stand in front of this body and [say that]… it's just not true. I think it goes to the weight and credibility — and I hate saying this — of Mr. Stetson's testimony tonight… That was just disingenuous.”*

— Attorney Jill Cohen, on CEO Stetson's claim that he confirmed non-compliance by looking at the storefront [2:08:28]

The City's case (CEO Brian Stetson / City Solicitor Kristen Collins)

Stetson testified the exterior signage, the business's own website and Weed Maps listing (both inviting walk-ins with posted hours), and branded third-party products on display led him to conclude the business had become a de facto retail operation. Solicitor Collins argued the ordinance's definition of a cultivation facility doesn't mention selling at all — any sales the City has tolerated were only ever an accessory use — and that the accumulated evidence shows the business has become indistinguishable from a retail store, regardless of the exact legal label.

> *“Going back to the pictures — yes, there's a tip jar, and… that is unsettling for me because that tip jar will — well, I can't not see retail activity when there's a tip jar.”*

— City Solicitor Kristen Collins, on the significance of the evidence [3:31:01]

Board questions and deliberation

Chair Burns pressed early on the central legal question: whether this is a zoning/land-use issue (what the board can decide) versus a question of what a caregiver is allowed to do under state law (which it cannot). Board attorney Ben McCall confirmed the board's role is narrow — determining only whether CEO Stetson correctly interpreted and applied the zoning ordinance, under a de novo standard of review (no deference to his original decision) and a preponderance-of-the-evidence burden resting on the appellant. Discussion repeatedly circled two linked questions: whether sales were being made to the general public rather than a defined patient roster, and whether products not grown or manufactured on-site were being sold. Several board members pointed to the posted hours, public-facing appointment system, and the tip jar as evidence of retail activity exceeding the

nonconforming use; alternate Cliff McCarthy pushed back repeatedly that the record lacked anything dated specifically to Nov. 5, 2025, calling the City's evidence “a relay of information… copy-paste what someone said, and now you're in violation.” The board agreed it was not a full “dispensary” (Zhang isn't a nonprofit, and the scale described didn't rise to that level), but did not feel it needed to settle on the separate label “caregiver retail store” either — the real question, the board agreed, was simply whether the use exceeded the scope of the legally nonconforming cultivation facility.

Straw polls (non-binding) and outcome

The board explicitly noted every vote tonight is a non-binding straw poll, meant only to guide attorney McCall in drafting formal Findings of Fact and Conclusions of Law for a future meeting — not a final decision.

✓ Appeal was timely filed — unanimous straw poll, 5–0.

✓ Appellant has standing to appeal — unanimous straw poll, 5–0.

✓ Board has jurisdiction to hear the appeal — unanimous.

On the merits, no formal numbered straw poll was taken; board attorney McCall instead summarized what he heard as the board's direction, and the board did not correct him: a majority leaning toward finding that, as of Nov. 5, 2025, activity at 640 Saco Street exceeded the scope of the legally nonconforming cultivation-facility use, based on apparent public-facing sales and products not grown or made on-site — while declining to formally characterize the business as a “dispensary” specifically. [3:40:00]

Key Decisions

No final decision — the board closed the evidentiary record and continued the matter to **March 24, 2026, 7:00 PM**, when it will deliberate on written Findings of Fact and Conclusions of Law and take a final, binding vote.

Action Items

• Board's attorney (Ben McCall) to draft written Findings of Fact and Conclusions of Law ahead of the March 24, 2026 continued meeting.

How this was made

This summary was produced from the meeting video (linked above). The audio was transcribed with AI-assisted speech-to-text and speaker identification. This process cross-checked names against the official Zoning Board of Appeals roster, attributed speakers from context (self-identification, direct address, roll-call order, and consistency with this pipeline's established recurring staff roles) rather than the raw diarization labels alone, and drafted this summary and the quoted excerpts. Quotes are lightly cleaned of filler words/false starts but not reworded. This was a quasi-judicial proceeding (sworn testimony, cross-examination-style questioning, a formal evidentiary record) condensed from roughly three hours of hearing and deliberation into its key threads and outcome. Review tier: Not reviewed.

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